

SOFTWARE SERVICES AGREEMENT

Confidential — For Execution Purposes Only

CLIENT	SERVICE PROVIDER
PT Maju Bersama Tbk 88 Jalan Sudirman, Jakarta 12910 Indonesia Reg. No. AHU-0012345.AH.01	Aether Solutions Pte. Ltd. 10 Anson Road, #28-01 Singapore 079903 Reg. No. 202312345K

This Software Services Agreement ("Agreement") is entered into as of **1 June 2025** ("Effective Date") by and between the parties identified above.

1. DEFINITIONS

For the purposes of this Agreement, the following terms shall have the meanings ascribed to them below:

"Services": means the software development, integration, and maintenance services described in Schedule A attached hereto.

"Deliverables": means all software, code, documentation, reports, and other work product produced by the Service Provider under this Agreement.

"Confidential Information": means any non-public information disclosed by either party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and circumstances of disclosure.

"Intellectual Property": means patents, trademarks, trade secrets, copyrights, and any other proprietary rights recognised under applicable law.

"Force Majeure Event": means any event beyond a party's reasonable control, including acts of God, government actions, pandemic, natural disaster, or failure of third-party infrastructure.

2. SCOPE OF SERVICES

2.1 The Service Provider agrees to perform the Services as described in Schedule A, which is incorporated herein by reference. Any changes to the scope of Services must be agreed in writing via a Change Order signed by both parties.

2.2 The Service Provider shall assign qualified personnel to perform the Services and may, at its discretion, subcontract portions of the Services provided that the Service Provider remains fully responsible for the performance of any subcontractor.

2.3 The Client shall provide the Service Provider with timely access to its systems, personnel, and data reasonably necessary for the performance of the Services. Delays caused by the Client's failure to provide such access shall not constitute a breach by the Service Provider.

3. FEES AND PAYMENT

Milest one	Description	Amount (USD)
M1	Project Kickoff & Requirements Sign-off	15,000
M2	Prototype Delivery & Client Review	25,000
M3	Integration Testing & UAT Completion	25,000
M4	Production Deployment & Go-Live	20,000
M5	Post-Launch Support (3 months)	15,000
	Total Contract Value	USD 100,000

3.1 Invoices are due within **30 days** of receipt. Late payments shall accrue interest at the rate of **1.5% per month** on the outstanding balance. All amounts are exclusive of applicable taxes, including VAT and withholding tax, which shall be borne by the Client.

4. INTELLECTUAL PROPERTY

4.1 **Pre-existing IP.** Each party retains ownership of all Intellectual Property developed independently of this Agreement and in existence prior to the Effective Date ("Background IP"). Neither party acquires any rights in the other party's Background IP except as expressly granted under this Agreement.

4.2 **Work Product.** Upon receipt of full payment for the applicable milestone, the Service Provider hereby assigns to the Client all right, title, and interest in the Deliverables specifically created for the Client under this Agreement, excluding any Background IP embedded therein.

4.3 **License to Background IP.** To the extent any Background IP of the Service Provider is incorporated into the Deliverables, the Service Provider grants the Client a perpetual, non-exclusive, royalty-free license to use such Background IP solely as part of the Deliverables.

5. CONFIDENTIALITY

5.1 Each party ("Receiving Party") agrees to hold in strict confidence all Confidential Information received from the other party ("Disclosing Party") and to use such information solely for the purpose of performing its obligations under this Agreement.

5.2 The confidentiality obligations under this Clause 5 shall survive termination or expiration of this Agreement for a period of **five (5) years**.

5.3 The obligations under this Clause 5 shall not apply to information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was known to the Receiving Party prior to disclosure; (c) is independently developed by the Receiving Party without reference to the Confidential Information; or (d) is required to be disclosed by law or court order, provided the Receiving Party gives prompt written notice to the Disclosing Party.

6. LIMITATION OF LIABILITY

6.1 NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS OR DATA, ARISING OUT OF OR RELATING TO THIS AGREEMENT, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

6.2 The aggregate liability of either party for any claims arising under or in connection with this Agreement shall not exceed the total fees paid or payable by the Client in the **twelve (12) months** immediately preceding the event giving rise to the claim.

7. TERM AND TERMINATION

7.1 This Agreement commences on the Effective Date and continues until all Services have been delivered and accepted, unless earlier terminated in accordance with this Clause 7.

7.2 Either party may terminate this Agreement for convenience upon **30 days' written notice**. In the event of termination for convenience by the Client, the Client shall pay the Service Provider for all Services performed up to the date of termination.

7.3 Either party may terminate this Agreement immediately upon written notice if the other party: (a) commits a material breach that is not cured within 14 days of written notice; (b) becomes insolvent or enters into liquidation; or (c) ceases to carry on business.

8. GOVERNING LAW AND DISPUTE RESOLUTION

8.1 This Agreement shall be governed by and construed in accordance with the laws of **Singapore**, without regard to its conflict of laws principles.

8.2 Any dispute arising out of or in connection with this Agreement, including any question regarding its existence, validity, or termination, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre (SIAC) in accordance with its rules. The seat of arbitration shall be Singapore. The language of arbitration shall be English.

9. GENERAL PROVISIONS

9.1 Entire Agreement. This Agreement, together with its Schedules, constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior

negotiations, representations, and agreements.

9.2 Amendments. No amendment to this Agreement shall be valid unless made in writing and signed by authorised representatives of both parties.

9.3 Severability. If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

9.4 Waiver. No failure or delay by a party to exercise any right or remedy shall constitute a waiver of that or any other right or remedy.

9.5 Notices. All notices must be in writing and delivered by email with read receipt, courier, or registered post to the addresses specified on the cover page.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

PT MAJU BERSAMA TBK

AETHER SOLUTIONS PTE. LTD.

Authorised Signatory

Name: _____

Title: _____

Date: _____

Authorised Signatory

Name: _____

Title: _____

Date: _____